

COLLECTION · INVESTORS

Repossession and Eviction

*The Quebec legal framework — understand your
rights and limits*

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

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Repossession and Eviction

The Quebec legal framework — understand your rights and limits

Repossessing a dwelling to live in it, or evicting to enlarge it or change its use: these steps are possible in Quebec, but strictly regulated. Improvising them exposes you to refusals, delays and disputes.

This guide clarifies the difference between repossession and eviction, the accepted grounds, the notices and deadlines, and tenants' protections.

Informational content, not legal advice: these steps are ideally done with advice. Each chapter ends with a lined “My notes” page.

Repossession and eviction are sensitive, heavily regulated steps, where the slightest misstep can make it all fail. This guide distinguishes the two, specifies the eligible grounds and people, the procedure (notice, deadlines, compensation) and the importance of anticipating before buying.

Informational content: since these rules are strict and change over time, have your process validated before acting.

CHAPTER

Repossession vs eviction: two different things

Not confusing these two procedures.

Repossession of a dwelling lets the owner take back a unit to house themselves or an eligible relative (according to the rules). Eviction is rather aimed at taking back the unit to enlarge it, subdivide it or change its use. The two have distinct rules.

In both cases, the tenant enjoys protections, and the process requires valid grounds, compliant notices and respect for the deadlines.

Repossession and eviction are two distinct procedures: repossession lets you take back a unit to live in it (yourself or an eligible relative); eviction aims to recover the unit for major work, a subdivision or a change of use. The rules and protections differ.

EMILIE'S TIP

Never assume that buying a building lets you “empty” a unit at will. Repossession and eviction are regulated: look into it BEFORE you even buy if your project depends on it.

CHAPTER

The grounds and the eligible people

Checking that your situation is admissible.

Repossession is generally possible to house the owner or certain relatives defined by law (for example certain family members). Eviction rests on specific grounds (substantial enlargement, subdivision, change of use).

- Check that the person to be housed is eligible.
- Make sure the eviction ground matches those provided by law.
- A ground of convenience or bad faith can be challenged and refused.

Repossession is generally possible to house the owner or certain relatives (spouse, ascendants/descendants), under conditions. Not all situations are admissible: check the admissibility of your project BEFORE buying while counting on it.

EMILIE'S TIP

A “front” ground often backfires on the owner. The TAL and tenants can challenge a repossession or eviction whose good faith isn't demonstrated.

CHAPTER

Notice, deadlines and compensation

Following the procedure to the letter.

The process requires a written notice to the tenant, within precise deadlines before the end of the lease. The tenant can accept or refuse; in the event of a refusal (repossession) or in the case of an eviction, the process may go through the TAL. Compensation may be owed to the tenant (notably in the event of eviction).

- A compliant written notice, within the deadlines.
- Respect for the tenant's right of refusal (repossession).
- Possible compensation to plan for (especially in eviction).

The procedure requires a written notice within precise deadlines, and sometimes the payment of compensation to the tenant. The tenant can accept or challenge it before the TAL. The slightest procedural deviation (deadline, form) can make the process fail: rigour is essential.

EMILIE'S TIP

The slightest formal defect (a late, poorly written notice) can make your process fail. Get support: here procedural rigour is as important as the ground.

CHAPTER

Anticipating before buying

Factoring these rules into your investment decision.

If your project depends on freeing up a unit (to occupy it, enlarge it or raise the rent), assess the feasibility BEFORE buying. A fully rented building at low rents, with well-protected tenants, doesn't offer the flexibility people sometimes imagine.

Buy on the basis of the real situation and your real rights, not on an optimistic scenario of a quick vacancy.

If your project depends on freeing up a unit, factor these rules into your purchase decision: deadlines, eligibility, risk of challenge, cost of compensation. Buying while assuming you'll easily “empty” a unit is a frequent and costly mistake.

EMILIE'S TIP

*Buy the building as it is, not as you dream it will become after “freeing up” units.
The Quebec legal reality strongly protects existing tenants.*

CHAPTER

Following the procedure to the letter

Avoiding the errors that invalidate a repossession.

A poorly executed repossession or eviction can be **challenged and refused**. Rigour is essential:

- Use the **right ground** and the right eligible person.
- Respect the **notice deadlines** to the letter.
- Pay the **compensation** provided for, where applicable.
- Act in **good faith**: a bad-faith repossession exposes you to penalties.

At the slightest doubt, have your process validated before sending a notice.

A poorly executed repossession can be challenged and refused. Use the right ground and the right eligible person, respect the deadlines to the letter, pay the compensation provided for and act in good faith — a bad-faith repossession exposes you to penalties. At the slightest doubt, have your notice validated before sending it.

EMILIE'S TIP

A repossession comes down to the procedural details. A notice sent late or poorly written can make it all fail. Have your notice checked before sending it: you don't easily get a second chance.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Clarify whether my project is a repossession or an eviction.
2. Check the eligibility of the ground and the people.

Within 30 days

1. Get support for drafting the notices and respecting the deadlines.
2. Assess the feasibility before buying if my project depends on it.

Next

1. Proceed by the rules, with advice, or adjust my project.

Before acting

1. Check the admissibility of my project (ground, person, deadlines).
2. Have my notice validated and follow the procedure to the letter.

REFERENCES

Resources & glossary

- Repossession of a dwelling: taking back a unit to house the owner or an eligible relative.
 - Eviction: taking back to enlarge, subdivide or change the use.
 - Notice: a compliant written notification, within the provided deadlines.
 - Compensation: a sum sometimes owed to the tenant, especially in eviction.
 - TAL: the tribunal that can rule in the event of a challenge.
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- Repossession of a dwelling: taking back a unit to live in it (yourself or an eligible relative).
 - Eviction: recovering the unit for major work, subdivision, change of use.
 - Notice: a written notification within precise deadlines.
 - Compensation: compensation sometimes owed to the tenant.
 - Bad faith: a repossession that isn't genuine, exposing you to penalties.

GOING FURTHER

Quiz — test your knowledge

1. Repossession of a dwelling aims to:

- A) Enlarge the unit
- B) House the owner or an eligible relative
- C) Change the use
- D) Directly raise the rent

2. Eviction rather aims to:

- A) House the owner
- B) Enlarge, subdivide or change the use
- C) Nothing
- D) Lower the rent

3. A ground of convenience:

- A) Is always accepted
- B) Can be challenged and refused
- C) Is mandatory
- D) Speeds up the process

4. The process requires:

- A) A phone call
- B) A compliant written notice within the deadlines
- C) Nothing
- D) A simple text message

5. In the event of eviction, there may be:

- A) No compensation ever
- B) Compensation owed to the tenant
- C) A bonus for the owner
- D) Nothing

6. A formal defect in the notice:

- A) Has no effect
- B) Can make the process fail
- C) Speeds everything up
- D) Is recommended

7. If my project depends on freeing up a unit:

- A) I buy without checking
- B) I assess the feasibility before buying
- C) I ignore the law
- D) I force it

8. Existing tenants in Quebec are:

- A) Without protection
- B) Strongly protected
- C) Removable at will
- D) Without a lease

Answer key

- 1. **B** — That's the purpose of repossession (ch. 1).
- 2. **B** — Grounds distinct from repossession (ch. 1).
- 3. **B** — Good faith must be demonstrated (ch. 2).
- 4. **B** — A strict procedure (ch. 3).
- 5. **B** — Compensation to plan for (ch. 3).
- 6. **B** — Procedural rigour is crucial (ch. 3).
- 7. **B** — You buy according to your real rights (ch. 4).
- 8. **B** — The framework protects them (ch. 4).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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